

THOMAS, J., concurring in judgment

LP, 590 U. S. 45, 59 (2020). In my view, we should be guided by the text here.

2

Even accepting the Court’s broad interpretation of Clause 2 of Article II, § 1, I cannot agree with its determination that this Clause expressly authorizes the Washington law at issue here. In an attempt to tie Washington’s law to the State’s “power to appoint an elector,” see *ante*, at 589, the Court construes Wash. Rev. Code § 29A.56.340 (2016) as “enforc[ing] a pledge.” See *ante*, at 589; see also *ante*, at 581, 587–588, 597. But § 29A.56.340 did not involve the enforcement of a pledge or relate to the appointment process at all.¹ It simply regulated electors’ votes, unconnected to the appointment process.

To understand the Court’s error, a brief summary of its theory is necessary. According to the Court, Article II, § 1, grants States “the power to appoint” Presidential electors “in such Manner as the Legislature thereof may direct.” *Ante*, at 589. That “power to appoint an elector,” the Court states, “includes power to condition his appointment.” *Ibid.* The power to condition appointment in turn allows the State to insist that an “elector pledge to cast his Electoral College ballot for his party’s presidential nominee.” *Ibid.* And finally, “the State’s appointment power . . . enables the enforcement of a pledge.” *Ibid.* The Court’s theory is entirely premised on the State exercising a power to *appoint*.

Assuming the Court has correctly interpreted Article II, § 1, there are certain circumstances in which this theory could stand. Some States expressly require electors to pledge to vote for a party nominee as a condition of appointment and then impose a penalty if electors violate that

¹ In 2019, Washington revised its laws addressing Presidential electors, eliminating the provision imposing a civil penalty on faithless electors. See 2019 Wash. Sess. Laws pp. 755–758.

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pledge. For example, under Oklahoma law, “[e]very party nominee for Presidential Elector shall subscribe to an oath, stating that said nominee, if elected, will cast a ballot for the persons nominated for the offices of President and Vice President by the nominee’s party.” Okla. Stat., Tit. 26, § 10–102 (2019). Oklahoma then penalizes the violation of that oath: “Any Presidential Elector *who violates his oath* as a Presidential Elector shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Dollars (\$1,000.00).” § 10–109 (emphasis added). Other States have similar laws, first requiring a pledge as a condition of appointment and then penalizing the violation of that pledge. See, e.g., Ind. Code § 3–10–4–1.7(a) (2019) (imposing pledge requirement); § 3–10–4–9(d) (stating that “[a] presidential elector who . . . presents a ballot *marked in violation of the presidential elector’s pledge executed under section 1.7 . . . of this chapter*, vacates the office of presidential elector” (emphasis added)); Minn. Stat. § 208.43 (2020 Cum. Supp.) (imposing pledge requirement); § 208.46(c) (stating that “[a]n elector who . . . presents a ballot *marked in violation of the elector’s pledge executed under section 208.43 . . . vacates the office of elector*” (emphasis added)).²

But not all States attempt to bind electors’ votes through the appointment process. Some States simply impose a legal duty that has no connection to elector appointment. See *ante*, at 585. For example, New Mexico imposes a legal duty on its electors: “All presidential electors shall cast their ballots in the electoral college for the candidates of the political party which nominated them as presidential electors.” N. M. Stat. Ann. § 1–15–9(A) (Supp. 2011). And “[a]ny presidential elector who casts his ballot in violation of [this duty] is guilty of a fourth degree felony.” § 1–15–9(B). California

² See also Mont. Code Ann. §§ 13–25–304, 13–25–307(4) (2019); Neb. Rev. Stat. §§ 32–713(2), 32–714(4) (2016); Wash. Rev. Code §§ 29A.56.084, 29A.56.090(3) (2019).

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has a similar system. It first imposes a legal duty on electors to vote for the nominated candidates of the political party they represent if those candidates are alive. Cal. Elec. Code Ann. § 6906 (West 2019). It then imposes a punishment on “[e]very person charged with the performance of any duty under any law of this state relating to elections, who willfully neglects or refuses to perform it.” § 18002.³ These laws penalize electors for their faithless votes. But they do not attempt to regulate the votes of electors through the appointment process. In fact, these laws have nothing to do with elector appointment.

The Court recognizes the distinction between these two types of laws, *i. e.*, laws enforcing appointment conditions and laws that regulate electors outside of the appointment process. See *ante*, at 585 (recognizing that some States “merely impose [a] duty by law”). But it claims this is merely a “small semantic differenc[e].” *Ante*, at 590, n. 6. Far from being semantic, the difference between the power to impose a “condition of appointment” and the power to impose restrictions on electors *that have nothing to do with appointment* is fundamental to the Court’s textual argument. The Court’s entire analysis is premised on States’ purported Article II “power to appoint an elector” and “to condition his appointment.” *Ante*, at 589. The Court does not, and cannot, claim that the text of Article II provides States power over anything other than the *appointment* of electors. See *ante*, at 589–590.

Here, the challenged Washington law did not enforce any appointment condition. It provided that “[a]ny elector who

³ Michigan likewise does not regulate electors through the appointment process. Under Michigan law, the failure of an already appointed elector to resign “signifies” that the elector “consent[s] to serve and to cast his vote for the candidates for president and vice-president appearing on the Michigan ballot of the political party which nominated him.” Mich. Comp. Laws § 168.47 (2008). Attempting to cast a vote for another candidate “constitutes a resignation from the office of elector.” *Ibid.*

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votes for a person or persons not nominated by the party of which he or she is an elector is subject to a civil penalty of up to one thousand dollars.” Wash. Rev. Code § 29A.56.340 (2016). Unlike the laws of Oklahoma, Indiana, Minnesota and the other States discussed above, a violation of § 29A.56.340 was not predicated on violating a pledge or any other condition of appointment. In fact, it did not even mention a pledge, which was set forth in a separate, unreferenced provision. See § 29A.56.320. Thus, § 29A.56.340 had no connection to the appointment process and could be enforced independent of the existence of any pledge requirement. While the Court’s description of § 29A.56.340 as a law enforcing a condition of appointment may be helpful for the Court’s claim that Washington’s law was rooted in Article II, § 1’s “power to appoint,” it is simply not accurate. Thus, even accepting the Court’s strained reading of Article II, § 1’s text, I cannot agree with the Court’s effort to reconcile Washington’s law with its desired theory.

In short, the Constitution does not speak to States’ power to require Presidential electors to vote for the candidates chosen by the people. The Court’s attempt to ground such a power in Article II’s text falls short. Rather than contort the language of both Article II and the state statute, I would acknowledge that the Constitution simply says nothing about the States’ power in this regard.

II

When the Constitution is silent, authority resides with the States or the people. This allocation of power is both embodied in the structure of our Constitution and expressly required by the Tenth Amendment. The application of this fundamental principle should guide our decision here.

A

“The ultimate source of the Constitution’s authority is the consent of the people of each individual State.” *U. S. Term*

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Limits, 514 U. S., at 846 (THOMAS, J., dissenting). When the States ratified the Federal Constitution, the people of each State acquiesced in the transfer of limited power to the Federal Government. They ceded only those powers granted to the Federal Government by the Constitution. “The Federal Government and the States thus face different default rules: Where the Constitution is silent about the exercise of a particular power[,] the Federal Government lacks that power and the States enjoy it.” *Id.*, at 848; see also *United States v. Comstock*, 560 U. S. 126, 159 (2010) (THOMAS, J., dissenting).

This allocation of power is apparent in the structure of our Constitution. The Federal Government “is acknowledged by all to be one of enumerated powers.” *McCulloch v. Maryland*, 4 Wheat. 316, 405 (1819). “[T]he powers delegated by the . . . Constitution to the federal government are few and defined,” while those that belong to the States “remain . . . numerous and indefinite.” The Federalist No. 45, p. 292 (C. Rossiter ed. 1961) (J. Madison). Article I, for example, enumerates various legislative powers in § 8, but it specifically limits Congress’ authority to the “legislative Powers herein granted,” § 1. States face no such constraint because the Constitution does not delineate the powers of the States. Article I, § 10, contains a brief list of powers removed from the States, but States are otherwise “free to exercise all powers that the Constitution does not withhold from them.” *Comstock*, *supra*, at 159 (THOMAS, J., dissenting).

This structural principle is explicitly enshrined in the Tenth Amendment. That Amendment states that “[t]he powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.” As Justice Story explained, “[t]his amendment is a mere affirmation of what, upon any just reasoning, is a necessary rule of interpreting

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the constitution. Being an instrument of limited and enumerated powers, it follows irresistibly, that what is not conferred, is withheld, and belongs to the state authorities.” 3 J. Story, *Commentaries on the Constitution of the United States* § 1900, p. 752 (1833); see also *Alden v. Maine*, 527 U. S. 706, 714 (1999); *New York v. United States*, 505 U. S. 144, 156 (1992). In other words, the Tenth Amendment “states but a truism that all is retained which has not been surrendered,” *United States v. Darby*, 312 U. S. 100, 124 (1941), “mak[ing] clear that powers reside at the state level except where the Constitution removes them from that level,” *U. S. Term Limits*, *supra*, at 848 (THOMAS, J., dissenting); see also *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U. S. 528, 549 (1985).

Thus, “[w]here the Constitution is silent about the exercise of a particular power[,] that is, where the Constitution does not speak either expressly or by necessary implication,” the power is “either delegated to the state government or retained by the people.” *U. S. Term Limits*, *supra*, at 847–848 (THOMAS, J., dissenting); cf. *Martin v. Hunter’s Lessee*, 1 Wheat. 304, 326 (1816) (stating that the Federal Government’s powers under the Constitution must be “expressly given, or given by necessary implication”).

B

This fundamental allocation of power applies in the context of the electoral college. Article II, § 1, and the Twelfth Amendment address the election of the President through a body of electors. These sections of the Constitution provide the Federal Government with limited powers concerning the election, set various requirements for the electors, and impose an affirmative obligation on States to appoint electors. Art. II, § 1; Amdt. 12. Each of these directives is consistent with the general structure of the Constitution and the principle of reserved powers. See *supra*, at 605–607; *U. S. Term*

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Limits, supra, at 863 (THOMAS, J., dissenting). Put simply, nothing in the text or structure of Article II and the Twelfth Amendment contradicts the fundamental distribution of power preserved by the Tenth Amendment.

Of course, the powers reserved to the States concerning Presidential electors cannot “be exercised in such a way as to violate express constitutional commands.” *Williams v. Rhodes*, 393 U. S. 23, 29 (1968). That is, powers related to electors reside with States to the extent that the Constitution does not remove or restrict that power. Thus, to invalidate a state law, there must be “something in the Federal Constitution that deprives the [States of] the power to enact such [a] measur[e].” *U. S. Term Limits, supra*, at 850 (THOMAS, J., dissenting).

As the Court recognizes, nothing in the Constitution prevents States from requiring Presidential electors to vote for the candidate chosen by the people. Petitioners ask us to infer a constitutional right to elector independence by interpreting the terms “appoint,” “Electors,” “vote,” and “by Ballot” to align with the Framers’ *expectations* of discretion in elector voting. But the Framers’ expectations aid our interpretive inquiry only to the extent that they provide evidence of the original public meaning of the Constitution. They cannot be used to change that meaning. As the Court explains, the plain meaning of the terms relied on by petitioners does not appear to “connote independent choice.” *Ante*, at 591. Thus, “the original expectation[s]” of the Framers as to elector discretion provide “no reason for holding that the power confided to the States by the Constitution has ceased to exist.” *McPherson*, 146 U. S., at 36; see also *ante*, at 592.

* * *

“The people of the States, from whom all governmental powers stem, have specified that all powers not prohibited to the States by the Federal Constitution are reserved ‘to

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the States respectively, or to the people.’” *U. S. Term Limits*, 514 U. S., at 852 (THOMAS, J., dissenting). Because I would decide this case based on that fundamental principle, I concur only in the judgment.

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Syllabus

BARR, ATTORNEY GENERAL, ET AL. *v.* AMERICAN
ASSOCIATION OF POLITICAL CONSULTANTS,
INC., ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FOURTH CIRCUIT

No. 19–631. Argued May 6, 2020—Decided July 6, 2020

In response to consumer complaints, Congress passed the Telephone Consumer Protection Act of 1991 (TCPA) to prohibit, *inter alia*, almost all robocalls to cell phones. 47 U. S. C. § 227(b)(1)(A)(iii). In 2015, Congress amended the robocall restriction, carving out a new government-debt exception that allows robocalls made solely to collect a debt owed to or guaranteed by the United States. 129 Stat. 588. The American Association of Political Consultants and three other organizations that participate in the political system filed a declaratory judgment action, claiming that § 227(b)(1)(A)(iii) violated the First Amendment. The District Court determined that the robocall restriction with the government-debt exception was content-based but that it survived strict scrutiny because of the Government’s compelling interest in collecting debt. The Fourth Circuit vacated the judgment, agreeing that the robocall restriction with the government-debt exception was a content-based speech restriction, but holding that the law could not withstand strict scrutiny. The court invalidated the government-debt exception and applied traditional severability principles to sever it from the robocall restriction.

Held: The judgment is affirmed.

923 F. 3d 159, affirmed.

JUSTICE KAVANAUGH, joined by THE CHIEF JUSTICE, JUSTICE THOMAS, and JUSTICE ALITO, concluded in Part II that the 2015 government-debt exception violates the First Amendment. Pp. 618–621.

(a) The Free Speech Clause provides that government generally “has no power to restrict expression because of its message, its ideas, its subject matter, or its content.” *Police Dept. of Chicago v. Mosley*, 408 U. S. 92, 95. Under this Court’s precedents, content-based laws are subject to strict scrutiny. See *Reed v. Town of Gilbert*, 576 U. S. 155, 165. Section 227(b)(1)(A)(iii)’s robocall restriction, with the government-debt exception, is content-based because it favors speech made for the purpose of collecting government debt over political and other speech. Pp. 618–619.

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(b) The Government’s arguments for deeming the statute content-neutral are unpersuasive. First, § 227(b)(1)(A)(iii) does not draw distinctions based on speakers, and even if it did, that would not “automatically render the distinction content neutral.” *Reed*, 576 U. S., at 170. Second, the law here focuses on whether the caller is *speaking* about a particular topic and not, as the Government contends, simply on whether the caller is engaged in a particular economic activity. See *Sorrell v. IMS Health Inc.*, 564 U. S. 552, 563–564. Third, while “the First Amendment does not prevent restrictions directed at commerce or conduct from imposing incidental burdens on speech,” this law “does not simply have an effect on speech, but is directed at certain content and is aimed at particular speakers.” *Id.*, at 567. Pp. 619–620.

(c) As the Government concedes, the robocall restriction with the government-debt exception cannot satisfy strict scrutiny. The Government has not sufficiently justified the differentiation between government-debt collection speech and other important categories of robocall speech, such as political speech, issue advocacy, and the like. P. 621.

JUSTICE KAVANAUGH, joined by THE CHIEF JUSTICE and JUSTICE ALITO, concluded in Part III that the 2015 government-debt exception is severable from the underlying 1991 robocall restriction. The TCPA is part of the Communications Act, which has contained an express severability clause since 1934. Even if that clause did not apply to the exception, the presumption of severability would still apply. See, e. g., *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477. The remainder of the law is capable of functioning independently and would be fully operative as a law. Severing this relatively narrow exception to the broad robocall restriction fully cures the First Amendment unequal-treatment problem and does not raise any other constitutional problems. Pp. 621–636.

JUSTICE SOTOMAYOR concluded that the government-debt exception fails under intermediate scrutiny and is severable from the rest of the Act. Pp. 636–637.

JUSTICE BREYER, joined by JUSTICE GINSBURG and JUSTICE KAGAN, would have upheld the government-debt exception, but given the contrary majority view, agreed that the provision is severable from the rest of the statute. P. 648.

JUSTICE GORSUCH concluded that content-based restrictions on speech are subject to strict scrutiny, that the Telephone Consumer Protection Act’s rule against cell phone robocalls is a content-based restriction, and that this rule fails strict scrutiny and therefore cannot be constitutionally enforced. Pp. 648–651.

KAVANAUGH, J., announced the judgment of the Court and delivered an opinion, in which ROBERTS, C. J., and ALITO, J., joined, and in which THOMAS, J., joined as to Parts I and II. SOTOMAYOR, J., filed an opinion concurring in the judgment, *post*, p. 636. BREYER, J., filed an opinion concurring in the judgment with respect to severability and dissenting in part, in which GINSBURG and KAGAN, JJ., joined, *post*, p. 637. GORSUCH, J., filed an opinion concurring in the judgment in part and dissenting in part, in which THOMAS, J., joined as to Part II, *post*, p. 648.

Deputy Solicitor General Stewart argued the cause for petitioners. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Frederick Liu*, *Mark B. Stern*, and *Michael S. Raab*.

Roman Martinez argued the cause for respondents. With him on the brief were *Andrew B. Clubok*, *Susan E. Engel*, and *William E. Raney*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Indiana et al. by *Curtis T. Hill, Jr.*, Attorney General of Indiana, *Thomas M. Fisher*, Solicitor General, *Kian J. Hudson*, Deputy Solicitor General, and *Julia C. Payne*, Deputy Attorney General, by *Joshua H. Stein*, Attorney General of North Carolina, *Matthew W. Sawchak*, Solicitor General, *Ryan Y. Park*, Deputy Solicitor General, and *Nicholas S. Brod*, Assistant Solicitor General, by *Eric J. Wilson*, Deputy Attorney General of Wisconsin, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Leslie Rutledge* of Arkansas, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Clare E. Connors* of Hawaii, *Lawrence G. Wasden* of Idaho, *Kwame Raoul* of Illinois, *Tom Miller* of Iowa, *Derek Schmidt* of Kansas, *Jeffrey M. Landry* of Louisiana, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Eric Schmitt* of Missouri, *Timothy C. Fox* of Montana, *Aaron Ford* of Nevada, *Gordon MacDonald* of New Hampshire, *Wayne Stenehjem* of North Dakota, *Mike Hunter* of Oklahoma, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Jason R. Ravensborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Sean Reyes* of Utah, *Mark R. Herring* of Virginia, *Robert W. Ferguson* of Washington, and *Patrick Morrissey* of West Virginia; for the Chamber of Commerce of the United States of America by *Shay Dvoretzky* and *Jeffrey R. Johnson*; for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for Facebook, Inc., by *Paul D. Clement*, *Kasdin M. Mitchell*, and *Lauren N. Beebe*; for Healthcare Companies by *Michael D. Roth* and

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JUSTICE KAVANAUGH announced the judgment of the Court and delivered an opinion, in which THE CHIEF JUSTICE and JUSTICE ALITO join, and in which JUSTICE THOMAS joins as to Parts I and II.

Americans passionately disagree about many things. But they are largely united in their disdain for robocalls. The Federal Government receives a staggering number of complaints about robocalls—3.7 million complaints in 2019 alone. The States likewise field a constant barrage of complaints.

For nearly 30 years, the people’s representatives in Congress have been fighting back. As relevant here, the Telephone Consumer Protection Act of 1991, known as the TCPA, generally prohibits robocalls to cell phones and home phones. But a 2015 amendment to the TCPA allows robocalls that are made to collect debts owed to or guaranteed by the Federal Government, including robocalls made to collect many student loan and mortgage debts.

This case concerns robocalls to cell phones. Plaintiffs in this case are political and nonprofit organizations that want to make political robocalls to cell phones. Invoking the First Amendment, they argue that the 2015 government-

Maxwell V. Pritt; for the Institute for Free Speech by *Parker Douglas*; for the National League of Cities et al. by *John M. Baker*, *Katherine M. Swenson*, and *Lisa Soronen*; for Portfolio Recovery Associates, LLC, by *Misha Tseytlin*; for Public Citizen et al. by *Scott L. Nelson* and *Allison M. Zieve*; and for the Student Loan Servicing Alliance by *Jessica L. Ellsworth* and *Mark W. Brennan*.

Briefs of *amici curiae* urging affirmance were filed for the Cato Institute by *Robert Corn-Revere*, *Ronald G. London*, and *Ilya Shapiro*; and for the Retail Energy Supply Association by *Michael P. Daly*.

Briefs of *amici curiae* were filed for Fifteen Members of Congress by *Keith J. Keogh*; for the Institute of Justice by *Robert J. McNamara* and *Paul M. Sherman*; for Midland Credit Management, Inc., by *Zachary C. Schauf* and *Amy M. Gallegos*; for the National Consumer Law Center et al. by *Tara Twomey*, *Christopher M. Miller*, and *Leigh R. Schachter*; and for the Retail Litigation Center, Inc., et al. by *Joseph R. Palmore* and *Deborah R. White*.

debt exception unconstitutionally favors debt-collection speech over political and other speech. As relief from that unconstitutional law, they urge us to invalidate the entire 1991 robocall restriction, rather than simply invalidating the 2015 government-debt exception.

Six Members of the Court today conclude that Congress has impermissibly favored debt-collection speech over political and other speech, in violation of the First Amendment. See *infra*, at 618–621; *post*, at 636–637 (SOTOMAYOR, J., concurring in judgment); *post*, at 648, 650 (GORSUCH, J., concurring in judgment in part and dissenting in part). Applying traditional severability principles, seven Members of the Court conclude that the entire 1991 robocall restriction should not be invalidated, but rather that the 2015 government-debt exception must be invalidated and severed from the remainder of the statute. See *infra*, at 621–636; *post*, at 637 (SOTOMAYOR, J., concurring in judgment); *post*, at 648 (BREYER, J., concurring in judgment with respect to severability and dissenting in part). As a result, plaintiffs still may not make political robocalls to cell phones, but their speech is now treated equally with debt-collection speech. The judgment of the U. S. Court of Appeals for the Fourth Circuit is affirmed.

I

A

In 1991, Congress passed and President George H. W. Bush signed the Telephone Consumer Protection Act. The Act responded to a torrent of vociferous consumer complaints about intrusive robocalls. A growing number of telemarketers were using equipment that could automatically dial a telephone number and deliver an artificial or prerecorded voice message. At the time, more than 300,000 solicitors called more than 18 million Americans every day. TCPA, § 2, ¶¶ 3, 6, 105 Stat. 2394, note following 47 U. S. C. § 227. Consumers were “outraged” and considered robocalls

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an invasion of privacy “regardless of the content or the initiator of the message.” ¶¶6, 10.

A leading Senate sponsor of the TCPA captured the zeitgeist in 1991, describing robocalls as “the scourge of modern civilization. They wake us up in the morning; they interrupt our dinner at night; they force the sick and elderly out of bed; they hound us until we want to rip the telephone right out of the wall.” 137 Cong. Rec. 30821 (1991).

In enacting the TCPA, Congress found that banning robocalls was “the only effective means of protecting telephone consumers from this nuisance and privacy invasion.” TCPA §2, ¶12. To that end, the TCPA imposed various restrictions on the use of automated telephone equipment. §3(a), 105 Stat. 2395. As relevant here, one restriction prohibited “any call (other than a call made for emergency purposes or made with the prior express consent of the called party) using any automatic telephone dialing system or an artificial or prerecorded voice” to “any telephone number assigned to a paging service, *cellular telephone service*, specialized mobile radio service, or other radio common carrier service, or any service for which the called party is charged for the call.” *Id.*, at 2395–2396 (emphasis added). That provision is codified in §227(b)(1)(A)(iii) of Title 47 of the U. S. Code.

In plain English, the TCPA prohibited almost all robocalls to cell phones.¹

¹The robocall restriction, as implemented by the Federal Communications Commission, bars both automated voice calls and automated text messages. See *In re Rules and Regulations Implementing the Telephone Consumer Protection Act of 1991*, 18 FCC Rcd. 14014, 14115 (2003). The robocall restriction applies to “persons,” which does not include the Government itself. See 47 U. S. C. §153(39). Congress has also authorized the FCC to promulgate regulatory exceptions to the robocall restriction. See §227(b)(2)(C). The FCC has authorized various exceptions over the years, such as exceptions for package-delivery notifications and certain healthcare-related calls. In this case, plaintiffs do not separately challenge the validity of the FCC’s regulatory exceptions.

Twenty-four years later, in 2015, Congress passed and President Obama signed the Bipartisan Budget Act. In addition to making other unrelated changes to the U. S. Code, that Act amended the TCPA's restriction on robocalls to cell phones. It stated:

“(a) IN GENERAL.—Section 227(b) of the Communications Act of 1934 (47 U. S. C. 227(b)) is amended—

(1) in paragraph (1)—

(A) in subparagraph (A)(iii), by inserting ‘, unless such call is made solely to collect a debt owed to or guaranteed by the United States’ after ‘charged for the call.’”
129 Stat. 588.²

In other words, Congress carved out a new government-debt exception to the general robocall restriction.

The TCPA imposes tough penalties for violating the robocall restriction. Private parties can sue to recover up to \$1,500 per violation or three times their actual monetary losses, which can add up quickly in a class action. § 227(b)(3). States may bring civil actions against robocallers on behalf of their citizens. § 227(g)(1). And the Federal Communications Commission can seek forfeiture penalties for willful or repeated violations of the statute. § 503(b).

² After the 2015 amendment, § 227(b)(1) now provides:

“It shall be unlawful for any person within the United States, or any person outside the United States if the recipient is within the United States—

(A) to make any call (other than a call made for emergency purposes or made with the prior express consent of the called party) using any automatic telephone dialing system or an artificial or prerecorded voice—

(iii) to any telephone number assigned to a paging service, cellular telephone service, specialized mobile radio service, or other radio common carrier service, or any service for which the called party is charged for the call, *unless such call is made solely to collect a debt owed to or guaranteed by the United States.*” (Emphasis added.)

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B

Plaintiffs in this case are the American Association of Political Consultants and three other organizations that participate in the political system. Plaintiffs and their members make calls to citizens to discuss candidates and issues, solicit donations, conduct polls, and get out the vote. Plaintiffs believe that their political outreach would be more effective and efficient if they could make robocalls to cell phones.³ But because plaintiffs are not in the business of collecting government debt, §227(b)(1)(A)(iii) prohibits them from making those robocalls.

Plaintiffs filed a declaratory judgment action against the U. S. Attorney General and the FCC, claiming that §227(b)(1)(A)(iii) violated the First Amendment. The U. S. District Court for the Eastern District of North Carolina determined that the robocall restriction with the government-debt exception was a content-based speech regulation, thereby triggering strict scrutiny. But the court concluded that the law survived strict scrutiny, even with the content-based exception, because of the Government's compelling interest in collecting debt.

The U. S. Court of Appeals for the Fourth Circuit vacated the judgment. *American Assn. of Political Consultants, Inc. v. FCC*, 923 F. 3d 159 (2019). The Court of Appeals agreed with the District Court that the robocall restriction with the government-debt exception was a content-based speech restriction. But the court held that the law could not withstand strict scrutiny and was therefore unconstitutional. The Court of Appeals then applied traditional severability principles and concluded that the government-debt exception was severable from the underlying robocall restriction. The Court of Appeals therefore invalidated the government-debt exception and severed it from the robocall restriction.

³ Plaintiffs have not challenged the TCPA's separate restriction on robocalls to home phones. See 47 U. S. C. §227(b)(1)(B).

The Government petitioned for a writ of certiorari because the Court of Appeals invalidated part of a federal statute—namely, the government-debt exception. Plaintiffs supported the petition, arguing from the other direction that the Court of Appeals did not go far enough in providing relief and should have invalidated the entire 1991 robocall restriction rather than simply invalidating the 2015 government-debt exception. We granted certiorari. 589 U. S. 1127 (2020).

II

Ratified in 1791, the First Amendment provides that Congress shall make no law “abridging the freedom of speech.” Above “all else, the First Amendment means that government” generally “has no power to restrict expression because of its message, its ideas, its subject matter, or its content.” *Police Dept. of Chicago v. Mosley*, 408 U. S. 92, 95 (1972).

The Court’s precedents allow the government to “constitutionally impose reasonable time, place, and manner regulations” on speech, but the precedents restrict the government from discriminating “in the regulation of expression on the basis of the content of that expression.” *Hudgens v. NLRB*, 424 U. S. 507, 520 (1976). Content-based laws are subject to strict scrutiny. See *Reed v. Town of Gilbert*, 576 U. S. 155, 163–164 (2015). By contrast, content-neutral laws are subject to a lower level of scrutiny. *Id.*, at 166.

Section 227(b)(1)(A)(iii) generally bars robocalls to cell phones. Since the 2015 amendment, the law has exempted robocalls to collect government debt. The initial First Amendment question is whether the robocall restriction, with the government-debt exception, is content-based. The answer is yes.

As relevant here, a law is content-based if “a regulation of speech ‘on its face’ draws distinctions based on the message a speaker conveys.” *Reed*, 576 U. S., at 163. That descrip-

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tion applies to a law that “singles out specific subject matter for differential treatment.” *Id.*, at 169. For example, “a law banning the use of sound trucks for political speech—and only political speech—would be a content-based regulation, even if it imposed no limits on the political viewpoints that could be expressed.” *Ibid.*; see, e. g., *Simon & Schuster, Inc. v. Members of N. Y. State Crime Victims Bd.*, 502 U. S. 105, 116 (1991); *Arkansas Writers’ Project, Inc. v. Ragland*, 481 U. S. 221, 229–230 (1987); *Widmar v. Vincent*, 454 U. S. 263, 265, 276–277 (1981); *Carey v. Brown*, 447 U. S. 455, 459–463 (1980); *Erznoznik v. Jacksonville*, 422 U. S. 205, 211–212 (1975); *Mosley*, 408 U. S., at 95–96.

Under § 227(b)(1)(A)(iii), the legality of a robocall turns on whether it is “made solely to collect a debt owed to or guaranteed by the United States.” A robocall that says, “Please pay your government debt” is legal. A robocall that says, “Please donate to our political campaign” is illegal. That is about as content-based as it gets. Because the law favors speech made for collecting government debt over political and other speech, the law is a content-based restriction on speech.

The Government advances three main arguments for deeming the statute content-neutral, but none is persuasive.

First, the Government suggests that § 227(b)(1)(A)(iii) draws distinctions based on speakers (authorized debt collectors), not based on content. But that is not the law in front of us. This statute singles out calls “made solely to collect a debt owed to or guaranteed by the United States,” not all calls from authorized debt collectors.

In any event, “the fact that a distinction is speaker based” does not “automatically render the distinction content neutral.” *Reed*, 576 U. S., at 170; *Sorrell v. IMS Health Inc.*, 564 U. S. 552, 563–564 (2011). Indeed, the Court has held that “‘laws favoring some speakers over others demand strict scrutiny when the legislature’s speaker preference re-

flects a content preference.’” *Reed*, 576 U. S., at 170 (quoting *Turner Broadcasting System, Inc. v. FCC*, 512 U. S. 622, 658 (1994)).

Second, the Government argues that the legality of a robocall under the statute depends simply on whether the caller is engaged in a particular economic activity, not on the content of speech. We disagree. The law here focuses on whether the caller is *speaking* about a particular topic. In *Sorrell*, this Court held that a law singling out pharmaceutical marketing for unfavorable treatment was content-based. 564 U. S., at 563–564. So too here.

Third, according to the Government, if this statute is content-based because it singles out debt-collection speech, then so are statutes that *regulate* debt collection, like the Fair Debt Collection Practices Act. See 15 U. S. C. § 1692 *et seq.*⁴ That slippery-slope argument is unpersuasive in this case. As we explained in *Sorrell*, “the First Amendment does not prevent restrictions directed at commerce or conduct from imposing incidental burdens on speech.” 564 U. S., at 567. The law here, like the Vermont law in *Sorrell*, “does not simply have an effect on speech, but is directed at certain content and is aimed at particular speakers.” *Ibid.* The Government’s concern is understandable, but the courts have generally been able to distinguish impermissible content-based speech restrictions from traditional or ordinary economic regulation of commercial activity that imposes incidental burdens on speech. The issue before us concerns only robocalls to cell phones. Our decision today on that issue fits comfortably within existing First Amendment precedent. Our decision is not intended to expand existing First Amendment doctrine or to otherwise affect traditional or ordinary economic regulation of commercial activity.

⁴This opinion uses the term “debt-collection speech” and “debt-collection robocalls” as shorthand for *government*-debt collection speech and robocalls.

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In short, the robocall restriction with the government-debt exception is content-based. Under the Court's precedents, a "law that is content based" is "subject to strict scrutiny." *Reed*, 576 U. S., at 165. The Government concedes that it cannot satisfy strict scrutiny to justify the government-debt exception. We agree. The Government's stated justification for the government-debt exception is collecting government debt. Although collecting government debt is no doubt a worthy goal, the Government concedes that it has not sufficiently justified the differentiation between government-debt collection speech and other important categories of robocall speech, such as political speech, charitable fundraising, issue advocacy, commercial advertising, and the like.⁵

III

Having concluded that the 2015 government-debt exception created an unconstitutional exception to the 1991 robocall restriction, we must decide whether to invalidate the entire 1991 robocall restriction, or instead to invalidate and sever the 2015 government-debt exception. Before we apply ordinary severability principles, we must address plaintiffs' broader initial argument for why the entire 1991 robocall restriction is unconstitutional.

⁵In his scholarly separate opinion, JUSTICE BREYER explains how he would apply freedom of speech principles. But the Court's longstanding precedents, which we carefully follow here, have not adopted that approach. In essence, therefore, JUSTICE BREYER argues for overruling several of the Court's First Amendment cases, including the recent 2015 decision in *Reed v. Town of Gilbert*, 576 U. S. 155 (2015). Before overruling precedent, the Court usually requires that a party ask for overruling, or at least obtains briefing on the overruling question, and then the Court carefully evaluates the traditional *stare decisis* factors. Here, no party has asked for overruling, and JUSTICE BREYER's opinion does not analyze the usual *stare decisis* factors. JUSTICE BREYER's opinion therefore discounts both the Court's precedent and the Court's precedent on precedent.